

MOST QUALIFIED AT CK HAUL INC.
FILED BY: LUIS, MAURO SANTIAGO
TENTATIVE RULING:

The unopposed motion to compel attendance and testimony of the person most qualified at CK Haul Inc is granted.

The court will execute the proposed order filed on September 30, 2025, but requiring the deposition to take place within 30 days of the order.

19. 9:01 AM CASE NUMBER: C23-01482
CASE NAME: MAURO LUIS VS. SURINDER SINGH
***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF SURINDER SINGH**
FILED BY: LUIS, MAURO SANTIAGO
TENTATIVE RULING:

The unopposed motion to compel attendance and testimony of Surinder Singh is granted.

The court will execute the proposed order filed on September 3, 2025, but requiring the deposition to take place within 30 days of the order.

20. 10:00 AM CASE NUMBER: C24-00804
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. KAYLA FREITAS
COURT TRIAL HEARING 2 HOURS
FILED BY:
TENTATIVE RULING:

Appearance required.

Law & Motion
Add On

9:00 AM CASE NUMBER: C24-01562
CASE NAME: MARK SHOTWELL VS. STATE FARM GENERAL INSURANCE COMPANY
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES FROM DEFENDANT**

STATE FARM GENERAL INSURANCE COMPANY.

FILED BY:

TENTATIVE RULING:

Appearance required.

9:00 AM

CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT FILED BY DAVID T SEENO**

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for leave to file a first amended complaint by Plaintiffs David T. Seeno and David T. Seeno as Trustee of the David T. Seeno Revocable Trust. This motion is opposed by Defendant Albert D. Seeno, Jr.

Plaintiffs' motion is **granted**. Plaintiffs' First Amended Complaint is deemed filed as of the date of this hearing, 12/22/25. Plaintiffs shall file a separate copy of their First Amended Complaint by 12/26/25.

Judicial Notice

Defendant ADSJ requests judicial notice of (1) Albert D. Seeno III (ADS3)'s initial Complaint in Case No. C23-00614, *Albert D. Seeno III, et al. v. Albert D. Seeno, Jr.*, dated March 18, 2023; (2) ADS3's Second Amended Complaint in Case No. C23-00614, dated December 11, 2024; (3) the Final Ruling on Defendant ADSJ's Motion to Compel in Case No. C23-00614, dated June 5, 2025; and (4) the Declaration of Christa Hyams-Millard in Support of Plaintiffs' Motion Seeking Leave to Amend, Case No. C23-00614, dated July 3, 2025.

"[A] court [may] take judicial notice of a prior judgment in a different case even though such judgment or its content is not pleaded in the complaint, provided (a) the judgment is appropriately drawn to the court's attention and (b) the plaintiff has adequate notice and opportunity to be heard on the question of the effect of such judgment." (*Flores v. Arroyo* (1961) 56 Cal.2d 492, 496, Evid. Code, § 452(d).)

When taking judicial notice of court records, the court is limited to noticing the *existence* of each document in a court file but can only take judicial notice of the truth of facts asserted in orders, findings of fact and conclusions of law, and judgments. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) This does not include taking judicial notice of the existence of facts asserted in all of a court file's documents, including pleadings and affidavits. (*Ibid.*)